

Vineeta Sharma v. Rakesh Sharma

Citation: (2020) 9 SCC 1 | Court: Supreme Court | Year: 2020

Coram: 3-Judge Bench (Arun Mishra, S. Abdul Nazeer, M.R. Shah JJ.) | Subject: Family & Succession | Provisions: Hindu Succession Act 1956

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Daughters possess an unobstructed coparcenary right by birth in Hindu Undivided Family (HUF) property under amended Section 6 of the Hindu Succession Act, identical to sons. The right is retroactive; it is not necessary that the coparcener father was alive on the date of the amendment (9th September 2005).

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Hindu Succession Act 1956 Sec 6 (as amended in 2005). The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Hindu Succession Act 1956 Sec 6 (as amended in 2005).
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Overruled Prakash v. Phulavati (2016) and affirmed Danamma (2018). Coparcenary right is conferred by birth and not by devolution. A daughter born prior to 2005 can claim coparcenary rights in partition proceedings pending or instituted after the 2005 amendment.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Conferred absolute equal coparcenary rights by birth to daughters in HUF property.
- â€¢ Held that coparcener father need not be alive on 9 September 2005.
- â€¢ Resolved conflicting division bench decisions in Phulavati and Danamma.